



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1326: victims' rights; attorney fees; costs

BLACKMAN FLOOR AMENDMENT

1. Specifies a mens rea of *intentionally, knowingly or with gross negligence* for the violation of a victim's rights.
2. Specifies that the court's ordering of a party only applies when the party *violates*, rather than *violates or exacerbates a violation of*, a victim's rights.
3. Mirrors the expansion of recoverable expenses for victim rights into the child safety title for juvenile offenders (A.R.S. Title 8).

ADDITIONAL COW
BLACKMAN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1326
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.
~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 8-416, Arizona Revised Statutes, is amended to
3 read:

4 8-416. Standing to invoke rights; recovery of damages; right
5 to counsel

6 A. The rights enumerated in the victims' bill of rights, article
7 II, section 2.1, Constitution of Arizona, any implementing legislation or
8 court rules belong to the victim. The victim has standing to seek an
9 order, to bring a special action or to file a notice of appearance in a
10 trial court or an appellate proceeding seeking to enforce any right or to
11 challenge an order denying any right guaranteed to victims. A victim may
12 not be charged a filing fee to file a special action or to seek an order
13 pursuant to this subsection. In asserting any right, the victim has the
14 right to be represented by personal counsel at the victim's expense, and
15 the proceedings may be initiated by the victim's counsel or the
16 prosecutor.

17 B. A victim has the right to recover damages from a governmental
18 entity responsible for the intentional, knowing or grossly negligent
19 violation of the victim's rights under the victims' bill of rights,
20 article II, section 2.1, Constitution of Arizona, any implementing
21 legislation or court rule. ~~[Nothing in]~~ This section ~~[alters]~~ [DOES NOT
22 ALTER] or ~~[abrogates]~~ [ABROGATE] any provision for immunity provided for
23 under common law or statute.

24 C. At the request of the victim, the prosecutor may assert any
25 right to which the victim is entitled.

26 D. On the filing of a notice of appearance, counsel for the victim
27 shall be endorsed on all pleadings and, if present, be included in all

1 bench conferences and in chambers meetings and sessions with the trial
2 court that directly involve a victim's right enumerated in article II,
3 section 2.1, Constitution of Arizona.

4 E. Notwithstanding any other law and without limiting any rights
5 and powers of the victim, the victim has the right to present evidence or
6 information and to make an argument to the court, personally or through
7 counsel, at any proceeding to determine the amount of restitution pursuant
8 to section 13-804.

9 [F. THE COURT MAY ORDER A PARTY WHO INTENTIONALLY, KNOWINGLY OR
10 WITH GROSS NEGLIGENCE VIOLATES A VICTIM'S RIGHT THAT IS ENUMERATED IN THIS
11 ARTICLE OR ARTICLE II, SECTION 2.1, CONSTITUTION OF ARIZONA, OR THAT IS
12 OTHERWISE GRANTED TO A VICTIM UNDER ARIZONA LAW TO PAY REASONABLE ATTORNEY
13 FEES AND COSTS TO THE VICTIM'S COUNSEL, INCLUDING A PRO BONO ATTORNEY OR
14 LEGAL AID ATTORNEY, FOR ENFORCING ANY VICTIMS' RIGHT OR REMEDYING ANY
15 VIOLATION OF THE VICTIM'S RIGHTS.]>>

16 Sec. 2. Section 13-4437, Arizona Revised Statutes, is amended to
17 read:

18 13-4437. Standing to invoke rights; recovery of damages;
19 right to counsel

20 A. The rights enumerated in the victims' bill of rights, article
21 II, section 2.1, Constitution of Arizona, any implementing legislation or
22 court rules belong to the victim. The victim has standing to seek an
23 order, to bring a special action or to file a notice of appearance in a
24 trial court or an appellate proceeding, seeking to enforce any right or to
25 challenge an order denying any right guaranteed to victims. A victim may
26 not be charged a filing fee to file a special action or to seek an order
27 pursuant to this subsection. In asserting any right, the victim has the
28 right to be represented by personal counsel at the victim's expense and
29 the proceedings may be initiated by the victim's counsel or the
30 prosecutor.

31 B. A victim has the right to recover damages from a governmental
32 entity responsible for the intentional, knowing or grossly negligent
33 violation of the victim's rights under the victims' bill of rights,
34 article II, section 2.1, Constitution of Arizona, any implementing
35 legislation or court rules. ~~Nothing in~~ This section ~~alters~~ DOES NOT ALTER
36 or ~~abrogates~~ ABROGATE any provision for immunity provided for under common
37 law or statute.

38 C. At the request of the victim, the prosecutor may assert any
39 right to which the victim is entitled.

40 D. On the filing of a notice of appearance, counsel for the victim
41 shall be endorsed on all pleadings and, if present, be included in all
42 bench conferences and in chambers meetings and sessions with the trial
43 court that directly involve a victim's right enumerated in article II,
44 section 2.1, Constitution of Arizona.

45 E. Notwithstanding any other law and without limiting any rights
46 and powers of the victim, the victim has the right to present evidence or
47 information and to make an argument to the court, personally or through

1 counsel, at any proceeding to determine the amount of restitution pursuant
2 to section 13-804.

3 F. THE COURT MAY ORDER A PARTY WHO [INTENTIONALLY, KNOWINGLY OR
4 WITH GROSS NEGLIGENCE] VIOLATES ~~[OR EXACERBATES A VIOLATION OF]~~ A VICTIM'S
5 RIGHT THAT IS ENUMERATED IN THIS CHAPTER OR ARTICLE II, SECTION 2.1,
6 CONSTITUTION OF ARIZONA, OR THAT IS OTHERWISE GRANTED TO A VICTIM UNDER
7 ARIZONA LAW TO PAY [REASONABLE] ATTORNEY FEES AND COSTS TO THE VICTIM'S
8 COUNSEL, INCLUDING A PRO BONO ATTORNEY OR LEGAL AID ATTORNEY, FOR
9 ENFORCING ANY VICTIMS' RIGHT OR REMEDYING ANY VIOLATION OF THE VICTIM'S
10 RIGHTS.

11 Sec. 3. Applicability

12 This act applies to all cases that are pending or filed on or after
13 the effective date of ~~[section]~~ [sections 8-416 and] 13-4437, Arizona
14 Revised Statutes, as amended by this act.

15 Enroll and engross to conform

16 Amend title to conform

WALT BLACKMAN

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C: JV

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